

1.

CASE #	CASE NAME	HEARING NAME
CVPS2403844	SHEPHERD VS FCA US, LLC	MOTION TO SET ASIDE DISMISSAL ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY UNDER SECTION 473(B) AND REINSTATE CASE BY DAVID WAYNE SHEPHERD, HEATHER O'DONNELL

Tentative Ruling: A motion to set aside pursuant to 473(b) for discretionary relief is available not just from defaults, default judgments, and dismissals, but may also apply to any order or “other proceeding” taken against the party. (C.C.P. §473(b); *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 254.) The failure of a party to meet a procedural deadline which results in default or dismissal may be the proper subject for relief section 473 (*Lee v. Wells Fargo Bank, N.A.* (2001) 88 Cal.App.4th 1187, 1193) but not when the default or dismissal was the result of a lapse of the statute of limitations, a failure to serve a complaint in a timely manner, failure to prosecute, or failure to amend a complaint (*Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 303-304).

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

An application for mandatory relief based on an attorney affidavit of fault must be made “no more than six months after entry of judgment.” (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.)

Mandatory relief only applies to defaults and dismissals and is not available for acts resulting in a judgment against the client such as (1) failing to oppose a dispositive motion (*English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 148-149), (2) failure to meet the burden of proof (*Generale Bank Nederland, N.V. v. Eyes of the Beholder Ltd.* (1998) 61 CA4th 1384, 1397), (3) failure to disclose an essential witness (*Gotschall v. Daley* (2002) 96 Cal.App.4th 479, 484), or (4) failure to appear at trial (*Vandermoon v. Sanwong* (2006) 142 Cal.App.4th 315, 321).

In this matter, Plaintiff’s motion references Mr. Brummel’s statement as a mistake/misrepresentation of the readiness of Plaintiff’s counsel on the trial date of February 25th. However, the motion fails to address the failure of Plaintiff’s attorneys to comply with Local Rule 3401, which was brought up by the court on February 6th, 20th and 23rd. In its minutes on February 25th, this court gave a procedural history of the attorneys for Plaintiff’s actions, including failure to comply with Local Rule 3401 as well as provide an answer as to whom the trial attorney was in this case. For reference, the relevant portions of the court’s minutes from the February 25th trial date are listed below:

On Court’s own motion, the matter was dismissed for failure to prosecute. The court notes that upon trial call, Plaintiff’s counsel Mr. Brummel announced he was not ready and that the assigned attorneys were engaged in other trials. On the original trial call of 2.06.26, Mr. Brummel indicated to the court that the assigned attorney, David Lunn, was engaged in trial and therefore unavailable. The court instructed Plaintiff to comply with Local Rule

3401 as the court had not received several documents prior to the trial call, this was also reported by defense attorney Mr. Muhammad. The court permitted a two-week continuance to February 20th, 2026, informing Mr. Brummel he was to submit a declaration indicating availability of trial counsel as well as address the deficiencies in complying with LR 3401. On 2.17.26, the court received a notification that Plaintiff had a change of attorney, listing Larry Chae and Breana Rucker as the attorneys of record. Subsequently, Mr. Lunn submitted a declaration with the court on 2.19.26 indicating he, Mr. Chae, and Mr. Arabi (previously listed as attorney for Plaintiff's before this matter was set for trial) were unavailable. On 2.20.26, prior to the trial call, Ms. Rucker filed a declaration stating she was assigned exclusively to pre-trial matters and did not serve as trial counsel. On the trial call for 2.20.26, Mr. Brummel reiterated the contents of the attorneys' declarations. He also was unable to provide to the court an explanation as to why the matter was assigned to another attorney (Mr. Chae) for trial purposes and 2 days later that attorney submitting a declaration stating they were unavailable. Additionally, on the 20th, no declaration or documentation addressing Local Rule 3401 was submitted. The court instructed the parties the matter would be called on Monday 2.23.26, to confirm the availability of Mr. Muhammed as he had two matters out of county pending trial call. On Monday, February 23rd, the trial was called for the third time, with defense Mr. Muhammad announcing ready and Mr. Smith on behalf of Plaintiff indicating to the court they did not have any updated information about availability of the trial attorneys. Both parties were instructed to come to court on February 25th, ready to proceed for trial. After Mr. Brummel informed the court that Plaintiff's were not ready to proceed and defense attorneys Mr. Muhammad and Ms. Hawkanson (sic) were ready to proceed on behalf of Defendant, the case was dismissed without prejudice.

The consistent disregard of the court's order regarding Local Rule 3401, and the failure of Plaintiff's counsel to provide an attorney ready to proceed for trial over multiple dates, does not warrant mandatory relief, as distinguished by the failure of an attorney to pay a venue transfer fee, the basis of *Gee v. Greyhound Lines, Inc.* (2016) 6 Cal.App.5th 477, cited by counsel for Plaintiff. For the above reasons mandatory relief is denied. Discretionary relief is denied on the same basis.

Motion to Set Aside Dismissal is DENIED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504788	PRALLE VS BANK OF AMERICA	MOTION FOR LEAVE TO AMEND 1ST AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY BY CATHERINE PRALLE

Tentative Ruling: C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).)